

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.47699 of 2023

Abdullah Al Galib

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. H. M. Shanjid Siddique, Advocate

.... For the petitioner.

Mr. Noor Us Sadik Chowdhury, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 19.03.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Monirumpur Police Station Case No.02 dated

05.09.2021 corresponding to G.R. Case No.185 of 2021 under Sections 8/9/10/11/12/13 of the Shantrash Birodhi Ain, 2009 (Amended 2013), now pending in the Court of learned Chief Judicial Magistrate, Jashore and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that accused petitioner and other 4 co-accused persons were arrested by police on 04.09.2021. One mobile telephone and computer laptop were recovered and seized from the possession of the petitioner. The petitioner was propagating the murderous ideology of proscribe militant organization Ansar Al Islam using above electronic devices.

Mr. H. M. Shanjid Siddique, learned Advocate for the petitioner Abdullah Al Galib submits that the petitioner is in custody in connection of this case for more than $2\frac{1}{2}$ years but investigation of this case could not be concluded. Co-accused Md. Jafor Hossain and Md. Nazir Hossain have been granted bail earlier.

Mr. Noor Us Sadik Chowdhury, learned Deputy Attorney General for the State raises objection against granting of bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

It turns out from the record that the name of the petitioner stands at serial No.2 of the FIR. It has been alleged that he is a member of proscribed militant organization Ansar Al Islam and he was engaged in the propagation of ideology of above organization. The petitioner is in custody in connection of this case for more than $2\frac{1}{2}$ years but the investigation of this case has not yet been concluded.

On consideration of above materials on record we find substance in this application under Section 498 of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

Let accused-petitioner Abdullah Al Galib, son of Abdur Rashid Mollah be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Jashore.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER